

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SAMUEL MERCADO and MARIBEL RIVERA,

SUMMONS

Plaintiffs,

Index No.

-against-

Plaintiffs Designate Bronx County
as the Proper Venue for Trial

CITY OF NEW YORK, WILLIAM ROJAS, DANIEL
RIVERA, BRAULIO APONTE, LUILLY VARGAS,
VICENTE PEREZ, DAVID CAMHI and LORENZO
JOHNSON,

Venue Is Based Upon Locus of
Injury

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 26, 2021

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By: 
Samuel C. DePaola, Esq.
Attorneys for Plaintiffs

TO: **CITY OF NEW YORK**

Via Corporation Counsel Of The City of New York
100 Church Street
New York, New York 10007

Sgt. WILLIAM ROJAS (Shield No. 5360)

Via 41st Precinct
1035 Longwood Avenue
The Bronx, New York 10459

Det. DANIEL RIVERA (Shield No. 7978)

Via Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

Det. BRAULIO APONTE (Shield No. 175)

Via Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

Det. LUILLY VARGAS (Shield No. 3471)

Via Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

Sgt. VICENTE PEREZ (Shield No. 2301)

Via 46th Detective Squad
2120 Ryer Avenue
The Bronx, New York 10457

Lt. DAVID CAMHI (Tax Reg. No. 939965)

Via Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

Ins. LORENZO JOHNSON (Tax Reg. No. 894081)

Via Narcotics Borough Bronx
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SAMUEL MERCADO and MARIBEL RIVERA,

VERIFIED COMPLAINT

Plaintiffs,

-against-

Index No.

CITY OF NEW YORK, WILLIAM ROJAS, DANIEL
RIVERA, BRAULIO APONTE, LUILLY VARGAS,
VICENTE PEREZ, DAVID CAMHI and LORENZO
JOHNSON,

Defendants.
-----X

Plaintiffs, **Mr. SAMUEL MERCADO** and **Ms. MARIBEL RIVERA**, by and
through the undersigned attorneys, Sim & DePaola, LLP, for their complaint against
Defendants, **CITY OF NEW YORK, WILLIAM ROJAS, DANIEL RIVERA, BRAULIO
APONTE, LUILLY VARGAS, VICENTE PEREZ, DAVID CAMHI and LORENZO
JOHNSON**, allege and state as follows:

1. This is a civil rights action, in which Plaintiffs seek relief and redress against defendants vis-à-vis sections 1981, 1983, 1985, 1986 and 1988, of title 42 to the Code of Laws of the United States, for the violations of their civil rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from a January 24, 2018, incident, in which defendants, acting under color of state law, unlawfully stopped, searched, seized, detained, arrest and

prosecuted Plaintiffs without a valid judicially authorized arrest or search warrant, reasonable suspicion, probable cause or any other legal justification to do so.

3. Plaintiffs, **Mr. SAMUEL MERCADO** and **Ms. MARIBEL RIVERA**, were caused to be unlawfully detained over the course of seven (7) days, until they were eventually released physical custody on, or about, January 30, 2018.

4. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

5. Within ninety (90) days of the accrual dates of the state law claims herein, Plaintiffs served the New York City Comptroller's Office with written notices of said claims.

6. Over thirty (30) days have elapsed since the service of said notices, and these matters have not been settled or otherwise disposed of.

7. Plaintiffs have each complied with municipal Defendant's demand for an oral examination, pursuant to section 50-h of the New York General Municipal Law or no such demand has been noticed within the time permitted by law.

8. The state law claims herein have been commenced within one-year-and-ninety-days of the dates from which they arose.

9. The above referenced acts caused Plaintiffs to be deprived of their liberty and resulted in the violations of their rights to be free from unreasonable searches and seizures, in addition their rights to be afforded Due Process and Equal Protection of the laws.

10. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other and further relief, as this Court may deem just and proper.

PARTIES

11. Plaintiff, Mr. Samuel Mercado ("Mr. Mercado"), is a Black, African American, Hispanic or Latino male, who resides in Bronx County, New York.

12. Plaintiff, Ms. Maribel Rivera ("Ms. Rivera"), is an African American, Black, Latina or Hispanic female who resides in Bronx County, New York.

13. The Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

14. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers, including the individually named Defendants herein.

15. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel, including the individually named defendants herein, obey the laws of the United States, as well as the City and State of New York.

16. Defendants, WILLIAM ROJAS ("ROJAS"), DANIEL RIVERA ("RIVERA"), BRAULIO APONTE ("APONTE"), LUILLY VARGAS ("VARGAS"), VICENTE PEREZ ("PEREZ"), DAVID CAMHI ("CAMHI") and LORENZO JOHNSON ("JOHNSON") were, at all relevant times herein, police officers, detectives, sergeants, lieutenants, inspectors or other supervisory officers, employed by the NYPD, and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all relevant times herein, believed to be assigned to Narcotics Borough Bronx. Defendants, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, are being sued in their individual and official capacities.

17. At all relevant times herein, Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

18. On January 24, 2018, at approximately 1:00 a.m., inside of 1715 Longfellow Avenue, The Bronx, New York, Plaintiffs were illegally stopped, searched, seized, arrested and detained by defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, who did not possess judicially authorized warrant to arrest Plaintiffs and who did not possess a lawfully obtained search warrant for the above-described residential premises .

19. Plaintiffs had not committed any crimes or violations of the law and had not been accused of such by any identified witnesses.

20. At said date, time and location, Plaintiffs were aggressively approached by numerous NYPD officers by, or at the direction of, defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, who extended their outstretched arms toward Plaintiffs in a threatening and intimidating manner.

21. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, then unlawfully stopped by Plaintiffs by grabbing Plaintiffs by their bodies and limbs, despite possessing no legal basis to do, as defendants did not possess any credible evidence against Plaintiffs regarding the commission of any crime or offense, including Criminal Possession of a Controlled Substance or any other related charges.

22. Defendants, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, proceeded to physically restrain Plaintiffs while violently contorting their arms behind their backs before finally affixing metal handcuffs to Plaintiffs' wrists in an excessively fashion, which caused Plaintiffs to sustain substantial physical pain and injuries to their backs, necks, arms, hands and wrists.

23. Plaintiffs complained to defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, that the handcuffs were too tight and causing to Plaintiffs suffer substantial pain but said defendants either ignored or outright refused Plaintiffs' requests to loosen their handcuffs.

24. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, lacked any probable cause or reasonable suspicion to stop, seize or arrest

Plaintiffs, because defendants never observed Plaintiffs commit any crime or violation of the law and were never informed by anyone that Plaintiffs committed any crime or violation of the law, including the illicit possession of a cocaine, heroin, marijuana.

25. Defendants, including, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, then proceeded to illegally search Plaintiffs' persons by subjecting Plaintiffs to illegal strip-searches with attendant cavity inspections of their persons, despite the clear lack of any indicia of secreted contraband or unlawful activity to justify such invasive procedures.

26. Due to the lack of probable cause for the searches or seizures of Plaintiffs' persons, the aforementioned conduct constituted the completed torts of assault and battery by defendants.

27. Prior to Plaintiffs being arraigned in criminal court, defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, caused the subject criminal court complaint to be filed against Plaintiffs in Bronx County Criminal Court, which falsely accused Plaintiffs of committing various crimes vis-à-vis the doctrine of constructive possession, including Criminal Possession of a Controlled Substance in the Third-Degree and other related charges.

28. Defendants, including, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, knowingly, maliciously and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which defendants falsely attributed to Plaintiffs before forwarding to prosecutors of the Bronx County District Attorney's Office, namely that Plaintiffs were observed inside the same

apartment residence or room as various quantities of cocaine, heroin and marijuana stored in containers of varying shapes and sizes, when defendants knew such observations to be untrue and complete fabrications, since no contraband was ever in the same room or general vicinity of Plaintiffs.

29. Defendants, including, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, engaged in fraud, the suppression of evidence, perjury, the gross deviation from acceptable police conduct and other conduct undertaken in bad faith, including the withholding of video surveillance and witness statements that directly contradict the false allegations against them by defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON.

30. Plaintiffs assert that Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, falsely arrested, wrongfully detained and maliciously prosecuted Plaintiffs with the full knowledge that they had committed no crimes or violations of the law.

31. Plaintiffs, therefore, assert that due to the clear absence of any viable probable cause to warrant the initiation or continuation of their respective criminal prosecutions, at any point, they were denied their rights to Fair Trial and Due Process and were maliciously prosecuted by defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, until the criminal proceedings were unquestionably terminated in favor of Plaintiffs on July 26, 2018, when all adverse charges were unconditionally and summarily dismissed and sealed, pursuant to sections 160.50 and 160.60 of the Criminal Procedure Law.

32. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, never possessed probable cause to believe that Plaintiffs were guilty of any crime or offense, or that the prosecutions would succeed.

33. As a result, Plaintiffs, Mr. Mercado and Ms. Rivera, were caused to be unlawfully, involuntarily and continuously detained by defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, over the course of approximately seven (7) days, until their releases from physical custody on, or about, January 30, 2018.

34. At all times relevant hereto, the defendants, including, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, were involved in the decision to stop, seize, arrest and prosecute Plaintiffs without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

35. At all times relevant hereto, the defendants, including, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

36. Defendant City and the individually named police officers herein, have engaged in a policy, custom, or pattern and practice of illegally stopping, searching, arresting and criminally prosecuting African American, Black, Latino or Hispanic males or females, who are unfortunate enough to be found inside a residence gratuitously targeted by the

NYPD to be unlawfully searched, without more, due solely to their impermissible and uncorroborated belief that such presence is tantamount to the commission of criminality.

37. Plaintiffs assert that the aforementioned unlawful acts committed by defendants are representative of a pervasive policy, custom or pattern and practice within the City of New York and the NYPD in particular.

38. Plaintiffs assert that Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, illegally approached, stopped, searched, and then falsely arrested them, due solely to their racially discriminatory prejudices against African American or Hispanic males or females, their intent to use the instant arrests as leverage against Plaintiffs, so that they would provide defendants with information regarding defendants' true and only suspects, or other unrelated crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

39. Plaintiffs further assert that Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumptions that Plaintiffs would be able provide said defendants with information pertaining to unrelated criminal activity or suspects, solely because of their statuses as African American or Hispanic males or females.

40. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, arrested and maliciously prosecuted Plaintiffs, because of their racially

discriminatory beliefs, which compelled defendants to equate to Plaintiffs' respective races, ethnicities or national origins to criminal guilt or criminal knowledge.

41. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations and biases, namely the stops, searches, assaults, batteries, seizures, arrests, and malicious prosecutions of Plaintiffs, despite possessing no evidence, credible or otherwise, to justify such conduct.

42. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted Plaintiffs, due solely to defendants' perception or consideration of Plaintiffs' respective races, ethnicities, national origins, sex, genders or ages.

43. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted Plaintiffs, because of their improper and pernicious desires to prevent Plaintiffs from exerting their First Amendment rights to engage in protected speech and activities, such as Plaintiffs' refusal to yield to defendants' unreasonably coercive demands to utter false confessions or assist defendants in the fabrication of evidence against defendants' true suspects or other persons of interest.

44. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, possessed no valid reason to approach, stop, question, search or arrest Plaintiffs, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities, including defendants' invidious and

biased based discriminatory predilections against African American or Hispanic males or females, such as Plaintiffs, defendants' desires to retaliate, punish or otherwise penalize Plaintiffs for their refusal to submit to the will of defendants by answering questions to the satisfaction of defendants.

45. Defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiffs by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

46. Plaintiffs assert that the defendants, including ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, who violated their civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, including the individually named defendants herein.

47. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of

New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

48. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

49. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious

conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

50. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled “Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn’t Involved,” describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

51. Another article with a title that speaks for itself, also published by the *New York Daily News*, on December 5, 2019, and written by Graham Rayman, is entitled “Ex-Cop Details NYPD ‘Collar Quotas’ – Arrest Black and Hispanic Men, ‘No Cuffs on Soft Targets’ of Jews, Asians, Whites: Court Docs.”

52. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled “I Got Tired of Hunting Black and Hispanic People,” which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

53. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and

the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

54. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

55. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the

imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

56. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

57. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned

the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

58. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrests without probable cause.

59. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

60. Defendants' actions, pursuant to Plaintiffs' underlying arrests, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

61. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known

after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

62. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

63. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including defendants, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON.

64. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing

violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

65. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

66. The aforementioned acts of defendants, including the CITY, ROJAS, RIVERA, APONTE, VARGAS, PEREZ, CAMHI and JOHNSON, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as enumerated and set forth by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

67. As direct or proximate results of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under
New York State Law

68. The above paragraphs are hereby incorporated by reference as though fully set forth.

69. Plaintiffs engaged in speech and activities that were protected by article I, section 8, of the constitution of the State of New York.

70. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

71. Defendants' retaliatory actions against Plaintiffs resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

72. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities or by chilling their desire to further participate or engage in such protected speech or activities.

73. Accordingly, Plaintiffs' rights to engage in protected speech and activities, guaranteed and protected by article I, section 8, of the constitution of the State of New York, were violated by defendants.

74. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

76. The above paragraphs are hereby incorporated by reference as though fully set forth.

77. Plaintiffs engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

78. Defendants committed impermissible or unlawful actions against Plaintiffs that were motivated or substantially caused by Plaintiffs' constitutionally protected speech or activities.

79. Defendants' retaliatory actions against Plaintiffs resulted in deprivations to their liberty and the initiation of criminal charges against them in the absence of probable cause.

80. Defendants' retaliatory actions adversely affected Plaintiffs' protected speech or activities by physically or procedurally preventing them from further pursuing said protected speech or activities, or by chilling their desires to further participate or engage in such protected speech or activities.

81. Accordingly, Plaintiffs' rights to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, were violated by defendants.

82. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

83. The above paragraphs are hereby incorporated by reference as though fully set forth.

84. Defendants subjected Plaintiffs' persons and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

85. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

86. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

87. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

88. Accordingly, defendants violated Plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the constitution of the State of New York and Article II, Section 8, of the New York Civil Rights Law.

89. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

90. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

91. The above paragraphs are hereby incorporated by reference as though fully set forth.

92. Defendants subjected Plaintiffs' persons and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

93. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

94. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

95. The unreasonable searches and seizures to Plaintiffs' persons and property were not otherwise privileged.

96. Accordingly, defendants violated Plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

97. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

98. The above paragraphs are hereby incorporated by reference as though fully set forth.

99. Defendants subjected Plaintiffs to false arrest, false imprisonment, and the deprivation of liberty without probable cause.

100. Plaintiffs were conscious of their confinement.

101. Plaintiffs did not consent to their confinement.

102. The arrests and false imprisonments of plaintiffs were not otherwise privileged.

103. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

105. The above paragraphs are hereby incorporated by reference as though fully set forth.

106. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

107. The wrongful, unjustifiable, and unlawful apprehensions, arrests, detentions, and imprisonments of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

108. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

109. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTIONAssault & Battery Under
New York State Law

110. The above paragraphs are hereby incorporated by reference as though fully set forth.

111. Defendants caused Plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful or offensive touching.

112. Defendants engaged in and subjected plaintiffs to immediate harmful or offensive touching and battered them without their consent or other legal justification therefor.

113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTIONExcessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

115. The above paragraphs are hereby incorporated by reference as though fully set forth.

116. The Defendants violated Plaintiffs' rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of plaintiffs.

117. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without them consent.

118. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

119. The above paragraphs are hereby incorporated by reference as though fully set forth.

120. Defendants initiated criminal prosecutions against Plaintiffs.

121. Defendants lacked probable cause to believe Plaintiffs were guilty or that the criminal prosecutions would succeed.

122. Defendants acted with malice, which may be inferred in the absence of probable cause.

123. The prosecutions were terminated in favor of Plaintiffs, when all adverse charges were unconditionally and outright dismissed on the merits, due to the lack of probable cause to believe that Plaintiffs had committed a crime or that the prosecutions would succeed.

124. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

126. The above paragraphs are hereby incorporated by reference as though fully set forth.

127. Defendants initiated criminal prosecutions against Plaintiffs.

128. Defendants lacked probable cause to believe Plaintiffs were guilty or that the criminal prosecutions would succeed.

129. Defendants acted with malice, which may be inferred in the absence of probable cause.

130. The prosecution was terminated in favor of Plaintiffs, when all adverse charges were unconditionally dismissed on the merits, due to the lack of probable cause to believe that Plaintiffs had committed any crimes or that the prosecutions would succeed.

131. Accordingly, Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

132. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

133. The above paragraphs are hereby incorporated by reference as though fully set forth.

134. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

135. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiffs, especially in the absence of any cognizable probable cause.

136. Defendants intended to inflict substantial harm upon Plaintiffs.

137. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiffs.

138. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

139. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

140. The above paragraphs are hereby incorporated by reference as though fully set forth.

141. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

142. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecutions against Plaintiffs, especially in the absence of any cognizable probable cause.

143. Defendants intended to inflict substantial harm upon plaintiffs.

144. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecutions initiated and thereafter maintained against Plaintiffs.

145. Defendants' actions therefore resulted in deprivations to Plaintiffs' rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

146. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION
Denial of Right to Due Process Under
New York State Law

147. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

148. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision.

149. Defendants forwarded said fabrications and false information to prosecutors.

150. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiffs after legal process had attached following their arraignments in criminal court.

151. Accordingly, defendants violated Plaintiffs' rights to due process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and Article II, Section 12, of the New York Civil Rights Law.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

154. The above paragraphs are hereby incorporated by reference as though fully set forth.

155. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

156. Defendants forwarded said fabrications and false information to prosecutors.

157. Defendants' actions resulted in deprivations to the liberty and freedom of movement of plaintiffs after legal process had attached following their arraignments in criminal court.

158. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

159. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

160. The above paragraphs are here incorporated by reference as though fully set forth herein.

161. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against plaintiffs, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiffs, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

162. Accordingly, defendants committed crimes of violence against Plaintiffs and violated plaintiffs' rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

163. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

164. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

165. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

166. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of plaintiffs as the determinative factor in initiating law enforcement actions against Plaintiffs, rather than Plaintiffs' behavior or other information or circumstances that would link Plaintiffs to suspected unlawful activity.

167. Accordingly, defendants violated Plaintiffs' rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

168. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

169. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION**Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State law**

170. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

171. Plaintiffs, as African American or Hispanic males or females, are members of a racial minority and protected class.

172. Defendants discriminated against Plaintiffs on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

173. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

174. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

175. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

176. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiffs.

177. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

178. Accordingly, defendants violated Plaintiffs' rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

179. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

180. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

181. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

182. Plaintiffs, as African American or Hispanic males or females, are members of a racial minority

and protected class.

183. Defendants discriminated against Plaintiffs on the basis of race, color, ethnicity or national origin.

184. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

185. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

186. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

187. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

188. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

189. Accordingly, defendants violated plaintiffs' rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

190. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

191. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

192. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

193. Defendants engaged in a conspiracy against Plaintiffs to deprive them of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of law, in addition to plaintiffs' Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

194. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

195. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty, rights or privileges as citizens of the United States.

196. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

197. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

198. Accordingly, defendants violated Plaintiffs' rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

199. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

200. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

201. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

202. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

203. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

204. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

205. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

206. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

207. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

208. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

209. The above paragraphs are hereby incorporated by reference as though fully set forth.

210. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

211. Defendant City breached those duties of care.

212. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

213. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiffs.

214. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiffs.

215. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City

216. The above paragraphs are hereby incorporated by reference as though fully set forth.

217. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as plaintiffs.

218. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

219. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers, including the individually named police officers herein.

220. Defendant City's employee police officers engaged in such egregious and flagrant violations of plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers, including the individually named defendants herein.

221. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD officers, including the individually named defendants herein.

222. Defendant City's conduct resulted in violations of Plaintiffs' civil rights, under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

223. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value
which exceeds the jurisdictional limits of all lower courts which would otherwise
have jurisdiction of this matter;

- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiffs compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- z) Together with the costs and disbursements of this action with all interest then accrued.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: Bayside, New York
October 26, 2021

SIM & DEPAOLA, LLP

Attorneys-at-Law
42-40 Bell Boulevard - Suite 405
Bayside, New York 11361
(718) 281-0400

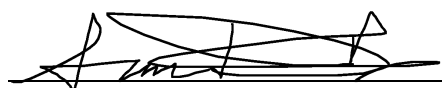
By: _____


Samuel C. DePaola, Esq.
Attorneys for Plaintiffs

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiffs, because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 26, 2021



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SAMUEL MERCADO and MARIBEL RIVERA,

Plaintiffs,

-against-

CITY OF NEW YORK, WILLIAM ROJAS, DANIEL RIVERA, BRAULIO APONTE,
LUILLY VARGAS, VICENTE PEREZ, DAVID CAMHI and LORENZO JOHNSON,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiffs

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for